

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC037410: LEONARDO F. PARRA vs JAGUAR LAND ROVER NORTH
AMERICA, LLC, et al.**

08/06/2026 in Department 44

**Motion to Compel Discovery the Deposition Of Defendant's Person Most Knowledgeable
And Production Of Documents**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff's Motion to Compel the Deposition of Defendant's PMK (*Opposed*)

Tentative Ruling:

Plaintiff Leonardo F. Parra's Motion to Compel the Deposition of Defendant's Person Most Knowledgeable and Production of Documents is GRANTED. (Code Civ. Proc., § 2025.450, subd. (a).)

Plaintiff has shown that there were multiple attempts to resolve the issue presented in this motion. Thus, the motion should be considered on the merits.

Defendant's PMK did not appear at the properly noticed and scheduled depositions. An "unavailability" objection is improper because a party, prior to serving a notice of deposition on another party, is not required to meet and confer regarding a suitable date, time, or location. The mere failure to accommodate the deponent's preferences does not constitute an "irregularity" within the meaning of Section 2025.410 or Section 2025.210.

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Defendant failed to produce a witness (or any responsive documents) on the noticed date, and did not move for a protective order or to quash the deposition notice. Code of Civil Procedure, section 2025.450, subdivision (a) provides that, under such circumstances, the Court may compel attendance and production. There is good cause for the PMK testimony.

No legal authority supports the proposition that a motion to compel a deposition is somehow rendered moot simply because the opposing party has engaged in scheduling efforts **after** the filing of the Motion.

The motion to compel the attendance of Defendant's PMK is GRANTED, the deposition must on or before September 6, 2026.

No sanctions were requested and none should be granted.